

Judgment Sheet.

IN THE LAHORE HIGH COURT, LAHORE.

JUDICIAL DEPARTMENT.

Civil Revision No. 1214 of 2017.

Haji Mehboob Alam. Versus Rana Khalid Mehmood & 03 others

J U D G M E N T.

Date of Hearing. 27.02.2025.

Petitioner by: M/s Barrister Syed Ali Nouman Shah,
Mohsin Raza Bhatti and Arslan Aamir
Tarar, Advocates.

Respondent No.1 by: Mr. Umair Ali, Advocate.

Respondent Nos. 2 to 4. Nemo.

KHALID ISHAQ, J:- Since the captioned Civil Revision is barred by limitation and the petitioner has filed an application for condonation of delay (C.M No. 01 of 2017), therefore, it is appropriate to decide the same at the outset.

C.M No. 01 of 2017.

2. This is an application under sections 5, 14 & 18 of the Limitation Act, 1908 (**Limitation Act**), read with Section 151 of the Code of Civil Procedure 1908 (**CPC**). The relief claimed through this application is twofold; condonation of delay; and/or exercise of *suo motu* revisional jurisdiction by this Court in terms of section 115 of the CPC.

3. The learned counsel for the applicant/petitioner vociferously argued that the proceedings conducted by the learned Civil Judge, Lahore (the “**Lower Court**”) are depleted of patent illegalities and material irregularities floating on the face of the record; adds that the

Lower Court has failed to arrest contraptions of abuse of process of law, which resulted into arbitrary, capricious and unlawful orders passed by it. Further submits that the collusive and questionable conduct of the then counsel for the applicant/petitioner, evidently in league with the beneficiaries, in utter disregard of professional ethics, due care and prudence expected from a professional are such glaring anomalies, which call for invocation of *suo motu* revisional jurisdiction of this Court. In order to substantiate his submissions, the learned counsel has heavily relied upon *Hafeez Ahmad*¹ and *Khan Bahadur's*² cases.

4. In order to deal with the ardent quest of the learned counsel for setting up a case for exercise of *suo motu* jurisdiction, it is imperative to explicate following admitted facts at the outset:

- i) Gleaned from the record, it is evident that the captioned civil revision petition, which calls into question the orders dated 14.12.2013 and 08.01.2016, was filed on 25.03.2017. In essence, the main thrust of applicant/petitioner's challenge is directed against order dated 14.12.2013. However, even by taking a lenient view, if the limitation is computed from order dated 08.01.2016, it is still barred by more than 11 months.
- ii) Civil Revision has arisen out of a suit for specific performance of agreement to sell dated 06.03.2008 (**Petitioner's Agreement**) regarding commercial property No. 29-C-A/3, Gulberg-II, Commercial Zone, Liberty Market, Lahore (**Suit Property**). As per contents of the plaint filed by the present petitioner, Petitioner's Agreement was executed by Respondent No.1 (**Rana Khalid Mehmood**) for a total consideration of Rs.155,000,000/-, out of which Rs. 50,000,000/- were paid as earnest money

¹ Hafeez Ahmad and others v. Civil Judge, Lahore and others (PLD 2012 SC 400-5-MB)

² Khan Bahadur Khan v. Khan Malook Khan (PLD 2022 SC 482).

by the applicant/petitioner. It is pertinent to note that Rana Khalid Mehmood executed Petitioner's Agreement on the basis of an earlier agreement to sell dated 26.02.2007 executed in his favour (**2nd Agreement**) by Respondent No.2 (**Ch. Waqas Ali**). This chain of transactions does not end here; record depicts that the basis of execution of 2nd Agreement by Ch. Waqas Ali, was an earlier agreement to sell dated 15.12.2004 (**1st Agreement**) executed in favour of Ch. Waqas Ali, by respondent Nos. 3 & 4, namely Zaka Ullah Ranjha and Mst. Attiq Rasheed (**Original Owners**).

- iii) On 12.05.2005, Ch. Waqas Ali filed a suit for specific performance of 1st Agreement against the Original Owners, titled "Ch. Waqas Ali vs Zaka Ullah Ranjha etc." (**1st Suit**). It was during the pendency of 1st Suit that 2nd Agreement was executed and, on the basis thereon, the Petitioner's Agreement was penned in the form of an assignment in favour of present applicant/petitioner, who also filed a suit for specific performance regarding the Suit Property on 07.05.2010 titled "Haji Mehboob Alam vs Zaka Ullah Ranjha etc." (**Petitioner's Suit**). At this juncture, the Original Owners too joined the pending litigation by filing a suit for declaration and permanent injunction on 19.06.2010, titled "Zaka Ullah Ranjha etc. vs Ch. Waqas Ali etc." (**3rd Suit**), seeking cancellation of all three Agreements.
- iv) During the pendency of Suits, on 05.07.2012 an application in terms of Order VII Rule 11 CPC was brought by the Original Owners (defendants of the Petitioner's Suit), seeking rejection of petitioner's plaint on the ground that since Petitioner's Suit is based on a mere agreement to sell,

therefore, the same is barred by law. This application under Order VII, Rule 11 was allowed by the Lower Court and consequently the Petitioner's plaint was rejected vide judgment & decree dated 14.12.2013 (**1st Judgment & Decree**). Petitioner assailed 1st Judgment and Decree by filing an appeal, bearing RFA No. 07 of 2014 titled "Haji Mehboob Alam vs Zaka Ullah Ranjha and others" (**First Appeal**), which was dismissed by a learned Division Bench of this Court on 26.05.2014 (**Appellate Order**), upholding the 1st Judgment and Decree. The applicant/petitioner sought recalling of the Appellate Order by filing a Review Petition under Section 114, read with Order XLVII Rules 1 & 2 of CPC bearing Review Application No.17-C of 2014 (**Review Petition**), which too was dismissed by the learned Division Bench on 22.02.2017 (**Order in Review**). *(Learned counsel for the petitioner informed that the petitioner has challenged the Order in Review by filing CPLA No. 1185-L/2017, which is pending before the Supreme Court of Pakistan).*

- v) On the fateful day of 1st Judgment and Decree *i.e.* 14.12.2013, when the applicant/petitioner's plaint was rejected, the remaining two suits *i.e.* 1st Suit for specific performance filed by Ch. Waqas Ali (*Respondent No. 2 herein*) and the 3rd Suit for cancellation filed by the Original Owners (*Respondent Nos. 3 & 4 herein*) was dismissed as withdrawn (**Withdrawal Order**). The learned counsel for the applicant/petitioner has attempted to impugn this arrangement brought about by the Original Owners and Ch. Waqas Ali, contending that Withdrawal Order on the basis of statements of Ch. Waqas Ali, stating to have received

back his total earnest money amounting to Rupees Twenty Million from Original Owners, paving way for cancellation of the 1st Agreement, was designed to fail all subsequent agreements. It is on this premise alone that the learned counsel for the applicant/petitioner has ventured to make out a case of 'unjust enrichment' by contending that since Ch. Waqas Ali had already received Rupees twenty-five Million from Rana Khalid Mehmood by executing 2nd Agreement on the basis of 1st Agreement, therefore his conduct of withdrawal of his rights qua 1st Agreement is an uncalled-for act resulting in unjust enrichment.

- vi) It was in the above background that on 03.09.2014, the present petitioner filed an application under Section 12(2), CPC **(12(2) Application)** seeking setting-aside of Withdrawal Order, on the ground of having been procured and issued on the basis of fraud committed upon the petitioner by the Original Owners and Ch. Waqas Ali. However, said 12(2) Application was dismissed by the Lower Court *vide* order dated 08.01.2016 (***impugned herein***). The applicant/petitioner sought recalling of 12(2) Order by filing an application under Section 151 of the CPC before the Lower Court, which had earlier dismissed 12(2) Application on merits. Ironically, contents and prayer of this application filed under Section 151 CPC depict as an application for restoration of 12(2) Application. This application under Section 151 CPC was dismissed *vide* order dated 17.12.2016. Hence this petition.

5. Following relief has been claimed through captioned revision petition:

“In the light of the facts mentioned herein above it is therefore most humbly prayed that the revision petition may kindly be allowed and the impugned order dated 14.12.2023 and 08.01.2016 may kindly be set-aside.”

6. Learned Counsel for the applicant/petitioner was confronted as to the core question of maintainability of the application, for the reason that on the date of filing of this application (25.03.2017), the amendment introduced for insertion of Article 162-A in the First Schedule of Limitation Act was not in field as it was re-inserted by Limitation (Punjab Amendment) Act 2018 (VIII of 2018), Published in Punjab Gazette (extraordinary dated:20th March, 2018). Thus, the application under section 5 of the Limitation Act is caught by mischief of section 29 read with Section 3 of the Limitation Act due to settled position of law that the institution of the suit carries with it the implication that all rights of appeal or revision then in force are preserved to the parties thereto till the rest of the career of the suit and a right to file an appeal or revision, if so conferred by the statute, accrues to the litigant and exists as on and from the date when the lis commences and although it may be actually exercised when the adverse judgment is pronounced, such right is to be governed by the law prevailing at the date of the institution of the suit or proceeding and not by the law that prevails at the date of its decision or at the date of the filing of the appeal or revision.³ In response, the learned counsel for the applicant/petitioner was at loath to cross this bridge, however, he eloquently sought refuge in his endeavor to plead the exercise of *suo motu* revisional jurisdiction of this Court. Learned counsel for the petitioner has also made his best to resort to the provisions contained in Order XXII Rule 10 of the CPC to argue that since an interest and right had come to vest in the applicant/ petitioner

³ “*Colonial Sugar Refining Company Limited v. Irving*” (1905 SC 369); “*Muhammad Ishaq v. The State*” (PLD 1956 SC 256); “*Idrees Ahmad and others v. Hafiz Fida Ahmad Khan and 4 others*” (PLD 1985 SC 376); “*West Pakistan Industrial Development Corporation v. Rashid Ahmad and another*” (1988 SCMR 526); “*Muhammad Saif Ullah Khan v. Lahore Development Authorities*” (PLD 2021 Lahore 168).

by virtue of Petitioner's Agreement, which right, per counsel, is essentially an assignment, therefore, the Lower Court was required to continue with the Suit despite the fact that Ch. Waqas Ali and Original Owners had joined hands and sought withdrawal of the First Suit. Places reliance upon number of judgments to support his contention.⁴

7. Arguments heard. Record perused.

8. Considering the record of the case and arguments advanced by the learned counsel for the applicant/petitioner, following questions arise for determination by this Court:

Hafeez Ahmad's ratio decidendi & its applicability to the case in hand:

It is settled by respectable authority that a case is only authority for what it actually decides and cannot be cited as precedent for a proposition that may be inferred from it.⁵ Considering the foregoing, one cannot escape to consider the facts which necessitated formation of larger bench of the Supreme Court for determinations handed by Hafeez Ahmed's case; the ratio of Hafeez Ahmad is unequivocally clear for its facts. At the relevant time the docket of the Supreme Court was inundated by the petitions involving questions arising from civil revisions filed in High Courts beyond the period of ninety days, which were all dismissed without exclusion of time consumed for obtaining certified copies. The Hon'ble larger bench assembled '[t]o consider *'inter alia whether the time consumed for obtaining certified copies of the judgment, decree or other documents could be excluded under*

⁴ "Messrs Shafiq Hanif (Pvt.) Ltd. vs Bank of Credit and Commerce International" (1998 CLC 314), "National Bank of Pakistan vs Shogan Int (Pvt.) Ltd. And others" (2005 CLC 1207), "Shahd Hamid Suleman and 3 others vs Faiz ul Hassan Shah and 12 others" (2001 YLR 28), "Mst. Surraya Begum and others vs Mst. Suban Begum and others" (1992 SCMR 652), "Muhammad Akram and another vs Mst. Zaib-un-Nisa and 6 others" (2003 MLD 231) & "Rashid Ahmad vs Mst. Jiwan and 5 others" (1997 SCMR 171)

⁵ "Syed HAMMAD NABI and others vs INSPECTOR GENERAL OF POLICE PUNJAB, LAHORE and others (2023 SCMR 584), Quinn v Leathem 1901 AC 495; Trustees of the Port of Karachi v. Muhammad Saleem (1994 SCMR 2213); "SINDH HIGH COURT BAR ASSOCIATION through its Secretary and another v. FEDERATION OF PAKISTAN through Secretary. Ministry of Law and Justice, Islamabad and others" (PLD 2009 SC 879) per Ch. Ijaz Ahmed J.;

*section 12 read with section 29 of the Limitation Act*⁶. The submissions of the learned counsels also revolved around the same premise.⁷ It does not mean that their lordships confined the scope of *suo motu* exercise of revisional jurisdiction only to those cases where the objection to limitation has surfaced due to delay caused in procuring certified copies of the orders, decrees or documents. Indeed, the contours of revisional jurisdiction have not been construed such stringently by their lordships, which may lead to inference of rendering *suo motu* exercise of revisional jurisdiction as almost nonexistent. Their lordships had upheld the consistent view of the Supreme Court that the revisional jurisdiction is preeminently corrective and supervisory, the function of the revisional court is to ensure the administration of justice through proper exercise of jurisdiction by procedural accuracy, correctness of the decision and legality thereof by the subordinate Court, therefore, there is no harm if the Court seized of a revision petition, exercises its *suo motu* Jurisdiction to correct the errors of jurisdiction committed by the subordinate Courts. With great respect, the predominant premise of Hafeez Ahmad is twofold; firstly, the Hon'ble bench hearing Hafeez Ahmad was cognizant of an undisputed fact that since the timeframe of three (3) days for supply of certified copies, as couched in second proviso to clause(c) of sub-section 1 of section 115 of the CPC, was not adhered to in every other case by the subordinate courts, thus without any fault of the revision petitioners, they were knocked out for filing revisions beyond the statutory period of limitation; secondly, since their lordships were cognizant of the consequences of the omission of Article 162-A of the Limitation Act, from the First Schedule of the Limitation Act by Act XI of 1965⁸, therefore, it was this context that the larger Bench in Hafeez

⁶ See para 3 of Hafeez Ahmad *supra*

⁷ See para 4 of Hafeez Ahmad *supra*

⁸ Article 162-A was initially inserted in the Second Schedule of the Limitation Act by Ordinance XLIII of 1962, the same was then omitted by Act XI of 1965, however, the provision has been reinserted in Punjab by *Limitation (Punjab Amendment) Act 2018 (VIII of 2018) Published in Punjab Gazette (extraordinary dated:20th March, 2018)*.

Ahmed ruled that the revisional court may exercise its suo motu jurisdiction where a revision petition has been filed after the period of limitation prescribed therefor. Nonetheless, their lordships had not held that the exercise of *suo motu* jurisdiction may be claimed as a matter of right in every other case, instead the authority to exercise *suo motu* revisional jurisdiction was circumscribed to the discretion of the Court, only if the conditions for its exercise are satisfied. Their lordships had summed up the issue in the following unequivocal terms:

*“23. The case of Banori v. Jilani (supra) being close to the text covers all the essential aspects of the provision including suo motu exercise of jurisdiction with reference to its origin and background. It also highlights the purpose behind prescribing the period of limitation and fixing the outer limit of time for final disposal of such petitions but what is the occasions for the exercise of suo motu jurisdiction has not been elaborately dealt with. **We, therefore, while summing up hold that suo motu revisional jurisdiction as vested in the High Court as well as of the District Court may be exercised if conditions for its exercise are satisfied, notwithstanding the revision petition is filed beyond the period prescribed.**⁹”*

[Emphasis Supplied]

9. Having considered the *ratio decidendi* & *raison d'etre* of Hafeez Ahmed, there is another well founded but subtle distinction which has to be kept in mind, as held in various judgments by the Supreme Court that *‘[t]here are two aspects to the jurisdiction of the revisional court, firstly, where the revisional court itself takes cognizance of a matter while exercising its suo motu powers under section 115(1) of the CPC, and secondly, where a person brings the matter to the notice of the revisional court under the first proviso to Section 115(1) ibid. This bifurcation is significant, the matter is only between the revisional court and the subordinate court when the court itself invokes its revisional jurisdiction, however, in the second instance, it is essentially adversarial litigation*¹⁰. It is thus clear that Revisional Court is not mandated to

⁹ See para 23 of Hafeez Ahmad *supra*.

¹⁰ Ghulam Qadir and others v. Sh. Abdul Wadood and others” (PLD 2016 Supreme Court 712)

entertain every passionate prayer for exercise of its *suo motu* jurisdiction under section 115 of the CPC. This has further been followed and reaffirmed by plethora of judgments, including the one relied upon by the learned counsel for the applicant/petitioner i.e. Khan Bahadur¹¹ *supra*, which has held:

“8 All the more so the case of Hafeez Ahmad (supra) unequivocally makes obvious that this court has not outrightly shelved or abandoned the condition of limitation for revision application rather it was held that the question depends on the discretion of the Court because the exercise of revisional jurisdiction in any form is discretionary and Court may exercise suo motu jurisdiction if the conditions for its exercise are satisfied. [T]he aforesaid judgment has deciphered us that, even in the above dictum, it was not the intention or spirit of the judgment that in all circumstances or come what may the High Court or District Court should consider every time barred revision as an information but the exercise of jurisdiction based on the prescribed parameters of revisional jurisdiction which is meant to cure and rectify serious illegality’

With great respect and deference, the scope of interference for exercising *suo motu* jurisdiction has further been thinned by insertion of Article 162-A in the First Schedule of the Limitation Act in Punjab.

Grounds for condonation of delay & ratio decidendi of Khushi Muhammad’s case¹²:

10. The true import of statute of limitation, its significance and essence has conclusively been settled by the Supreme Court of Pakistan¹³ while answering multiple questions urged as basis for condonation of delay. While considering various provisions of the Limitation Act, the Hon’ble larger Bench of the Apex Court in **Khushi Muhammad’s** case summed up the issues in the following terms:-

- (i) The law of limitation is a statute of repose, designed to quieten title and to bar stale and water-logged disputes and was to be strictly

¹¹ Khan Bahadur Khan v. Khan Malook Khan (PLD 2022 SC 482)

¹² Khushi Muhammad through L.Rs. and others v. Mst. Fazal Bibi and others” (PLD 2016 Supreme Court 872)

¹³ Khushi Muhammad *supra*.

complied with. There is no scope in law of limitation for any equitable or ethical construction to get over them. Justice, equity and good conscience do not override the law of limitation;

- (ii) The hurdles of limitation cannot be crossed under the guise of any hardships or imagined inherent discretionary jurisdiction of the Court. Ignorance, negligence, mistake or hardship does not save limitation, nor does poverty of the parties;
- (iii) There is absolutely no room for the exercise of any imagined judicial discretion vis-a-vis interpretation of a provision, whatever hardship may result from following strictly the statutory provision. There is no scope for any equity. The Court cannot claim any special inherent equity jurisdiction;
- (iv) The law of limitation is an artificial mode conceived to terminate justiciable disputes. It is therefore to be construed strictly with a leaning to benefit the suitor;

Wrong advice & conduct of the counsel as a ground for condonation of delay and exercise of suo motu jurisdiction.

11. The conduct of counsel, his failure to discharge his obligations of due prudence, diligence and professionalism, as sought to be agitated in this case, has long been settled as a matter between ‘*counsel & client*’, the list of such precedents is so long and established that it will be a burden for this judgment to mention the same, however, if an authority was required due to some divergent views, the same was supplied by Khushi Muhammad’s judgment, wherein, while answering the precise question as to whether the wrong advice of counsel constitutes a sufficient cause for condonation of delay, the Supreme Court held as under:

“Therefore, we are fortified in our view that mistaken advice of counsel does not constitute a sufficient cause for condonation of delay as a matter of course and routine and/or is automatic and per se rather as mentioned above, the appellant has to specify the reasons with clarity and precision which prevailed with the counsel and led him to commit the mistake and such application must also be supported by an affidavit¹⁴.”

¹⁴ Para 38 of Khushi Muhammad’s case.

12. Although no objection as to the limitation of the captioned revision petition has been raised by the office of this Court, perhaps for the reason that alongwith this revision petition, an application for condonation of delay was filed by the petitioner. However, keeping in view the mandatory provision of Section 3 of the Limitation Act, it is duty of every Court and forum itself to look into the question of limitation irrespective of the fact whether any objection in this regard has been raised or not¹⁵. Learned counsel for the petitioner was asked to explain as to what precluded the applicant/petitioner from filing the captioned civil revision petition immediately after 17.12.2016, when application under Section 151 CPC was dismissed by the learned Civil Court, as it is trite law that delay of each and every day has to be explained. In response the learned counsel submits that since this revision petition is within time from the order dated 17.12.2016, therefore, this delay may be condoned. This is not a plausible answer entitling the indulgence of this Court. Perusal of the prayer clause reveals that the order dated 17.12.2016 is not subject of challenge of the captioned revision petition and instead, the challenge is laid to orders dated 14.12.2013 & 08.01.2016. The delay of each and every day consumed for approaching the Court beyond the period of limitation has to be explained¹⁶ but in this case there is no explanation for such long delay; no explanation either as to why Withdrawal Order (order dated 14.12.2013) was not challenged within prescribed period of limitation,

¹⁵ “*Hakim Muhammad Buta and another v. Habib Ahmad and others*” (PLD 1985 Supreme Court 153), “*Ahsan Ali and others v. District Judge and others*” (PLD 1969 Supreme Court 167), “*Syed Iftikhar Hussain v. Ijaz Ahmad Cheema and another*” (1996 SCMR 943), “*Dilmir v. Ghulam Muhammad and 2 others*” (PLD 2002 Supreme Court 403), “*Haji Ghulam Rasul and others v. Government of the Punjab through Secretary, Auqaf Department, Lahore and others*” (2003 SCMR 1815), “*Almas Ahmad Fiaz v. Secretary Government of the Punjab Housing and Physical Planning Development, Lahore*” (2006 SCMR 783), “*Muhammad Sami v. Additional District Judge, Sargodha and 2 others*” (2007 SCMR 621), “*Government of N.W.F.P. and others v. Akbar Shah and others*” (2010 SCMR 1408)

¹⁶ “*Saqib Ali v. Government of Punjab and others*” (2023 PLC (C.S.) 310), “*Shahin Shah v. Government of Khyber Pakhtunkhwa through Secretary Irrigation Department, Peshawar and others*” (2022 SCMR 1810), “*Lal Khan through Legal Heirs v. Muhammad Yousaf through Legal Heirs*” (PLD 2011 Supreme Court 657), “*Qaisar Mushtaq Ahmad v. Controller of Examination and others*” (PLD 2011 Supreme Court 174).

if it is the case of the petitioner that the Lower Court has committed this material and patent illegality, which amounted to refusal of exercise of jurisdiction. It has also been settled by the Apex Court that even a void order has to be assailed within the period of limitation prescribed by law.¹⁷

Unjust Enrichment Argument:

13. Much emphasis has been laid on the principle of unjust enrichment as a ground for exercise of *suo motu* revisional jurisdiction in this case, therefore, the submission requires determination. In common law systems, five key questions underpin the ‘*skeleton of principle*’ on which the law of unjust enrichment and restitution are based: (1) was the payment received by mistake; (2) was the defendant enriched; (3) at the expense of the plaintiff; (4) in the circumstances where there is a recognised reason (an ‘unjust factor’) why the defendant should not be permitted to retain the benefit; and (5) is there a defence? Factual consequences of a triggering event of unjust enrichment, such as a mistaken payment, may vary. In some circumstances, a plaintiff may suffer a loss as a result of the event; in others, a defendant may gain as a result of a triggering event. Sometimes, both losses and gains will be present on the facts and will correlate.¹⁸ The principle of unjust enrichment has also considerably been developed by our Courts on almost similar terms. The following extract from *Sui Northern Gas Pipeline judgment*¹⁹, amongst others²⁰, is particularly instructive:

¹⁷ “*Chief Engineer, Gujranwala Electric Power Company (GEPCO), Gujranwala v. Khalid Mehmood and others*” (2023 PLC 65), “*Muhammad Sharif and others v. MCB Bank Limited and others*” (2021 SCMR 1158), “*Abid Hussain v. Secretary, Ministry of Defence, Government of Pakistan through Chief of Air Staff, Islamabad*” (2021 SCMR 645), “*Haji Wajdad v. Provincial Government through Secretary Board of Revenue Government of Balochistan, Quetta and others*” (2020 SCMR 2046), “*Ghulam Hussain Ramzan Ali v. Collector of Customs (Preventive), Karachi*” (2015 PTD 107), “*Ghulam Hussain Ramzan Ali v. Collector of Customs (Preventive), Karachi*” (2014 SCMR 1594), “*General (R.) Parvez Musharraf v. Nadeem Ahmed (Advocate) and another*” (PLD 2014 Supreme Court 585), “*Blue Star Spinning Mills Ltd. v. Collector of Sales Tax and others*” (2013 SCMR 587).

¹⁸ *Research Handbook on Unjust Enrichment and Restitution*, edited by Elise Bant, Kit Barker & Simone Degeling, Published by Edward Elgar Publishing – Cheltenham, UK, Northampton, MA, USA

¹⁹ “*Sui Northern Gas Pipelines v. Deputy Commissioner Inland Revenue and others*” (2014 PTD 1939)

“...Unjust enrichment is retention of a benefit by a person that is unjust or inequitable. The Supreme court of Canada has recently taken the opportunity of reviewing the law regarding unjust enrichment in Garland v. Consumers’ Gas Co. 2004 SC 25, wherein Iacobucci J held: “As a general matter, the test for unjust enrichment is well established in Canada. The cause of action has three elements: (1) an enrichment of the defendant; (2) a corresponding deprivation of the plaintiff; and (3) an absence of the juristic reason for the enrichment....” Thus, for recovery to lie, something must have been given, whether goods, services or money. The thing which is given must have been received and retained by the defendant, and the retention must be without juristic justification. One of the more prominent statements of the principle of unjust enrichment includes the early and oft-repeated dictum of Lord Mansfield in Mosses v. Macferlan: “the gist of this kind of action is, that the defendant, upon the circumstances of the case, is obliged by the ties of natural justice and equity to refund the money.” Another is that of Lord Wright in Fibrosa Spolka Akcyjna v. Fairbairn Lawson Combe Barbour Ltd.: “.... Any civilized system of law is bound to provide remedies for cases of what has been called unjust enrichment or unjust benefit, that is to prevent a man from retaining the money of or some benefit derived from another which it is against conscience that he should keep”. The American Restatement of the Law of Restitution: Quasi Contracts and Constructive Trusts, 1937, states the principle of unjust enrichment in the following simple terms: “A person who has been unjustly enriched at the expense of another is required to make restitution to the other.” And, one of the leading Commonwealth texts on restitution elaborates on the notion as follows: “[The principle of unjust enrichment] presupposes three things. First, the defendant must have been enriched by the

²⁰ *Messrs. Pfizer Laboratories Ltd. v. Federation of Pakistan and others (PLD 1998 SC 64); “Orient Power Company (Private) Limited v. Sui Northern Gas Pipelines Limited” (2021 SCMR 1728)*

receipt of a benefit; Secondly, the benefit must have been gained at the plaintiff's expense. Thirdly it would be unjust to allow the defendant to retain that benefit...". "Unjust enrichment occurs when a person retains money or benefits which in justice, equity and good conscience, belong to someone else. The doctrine of unjust enrichment, therefore, is that no person can be allowed to enrich inequitably at the expense of another. A right of recovery under the doctrine of "unjust enrichment" arises where retention of a benefit is considered contrary to justice or against equity..... Unjust enrichment is, inter alia, anchored in our fundamental preambular constitutional value of economic justice. Our Constitution abhors any form of economic exploitation....."

The above leads to inescapable conclusion that [unjust enrichment] is an edifice for laying a claim of restitution; involving factual determinations after granting an opportunity to the defendant. In this case, the applicant/petitioner has not laid any such claim of restitution so far, therefore, this Court is not inclined to treat the ground of unjust enrichment as a basis for exercising *suo motu* revisional jurisdiction as divulging into such question at this stage might prejudice anyone's case, if a separate suit is advised for restitution.

Application of Order XXII, Rule 10, CPC

14. Rule 10 of Oder XXII of CPC, repeatedly referred to by the learned counsel is of no help to the cause of the applicant/petitioner either. Rule 10 postulates that in case of an assignment or creation of any interest during pendency of suit, the suit may, by leave of the court, be continued by or against the person to or upon whom such interest has devolved. *Sine qua non* for such right would be an acceptance by a litigant party that it has transferred or assigned its interest to the applicant seeking leave of the court for continuation of the suit. In the

case in hand, neither any leave was applied for continuation of the suit nor the element of acceptance exists as the suits filed by the parties were contested, were at early stage and no admissions had taken place. The applicant/petitioner seeks to invoke this rule during the captioned revision petition, which is not maintainable due to its own defects. For invoking this rule in an appeal or revision, the assignment, transfer or devolution must take place during pendency of appeal or revision. The cases cited are distinguishable in the facts and circumstances of the case in hand, and would therefore have no precipitable relevance to the present lis.

15. Considering the above settled position of law in juxtaposition with the case in hand, it is abundantly clear that there are no grounds for invoking *suo motu* jurisdiction of this Court in terms of Section 115 CPC, nor the petitioner has been able to make out a case for condonation of delay. Consequently, this application being meritless is hereby **dismissed**.

Main Case (Civil Revision No. 1214 of 2017).

16. Since the application bearing C.M No. 01 of 2017 seeking condonation of delay in filing the instant revision petition has been dismissed, therefore, this petition is also **dismissed being barred by time**.

**(KHALID ISHAQ)
JUDGE.**

**Ajmal Rana.*

APPROVED FOR REPORTING.

**(KHALID ISHAQ)
JUDGE.**